

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: May 19, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

<u>LINE 6</u>	24CV449358	Honglin Chen et al vs Xiaoli Song	Motion to Compel Further Responses to Form Interrogatories, Special Interrogatories, Request for Production, Set One; and Motion for Sanctions This case stems from Defendant Song’s testimony in a prior action brought by Heng Zhang against Plaintiff Brendon Farrell that resulted in a jury awarding Heng Zhang in excess of \$9 million dollars against Plaintiff Farrell. Before the court is Plaintiffs Honglin Chen, Brendon Farrell, and Katherine Chen’s (collectively “Plaintiffs”) motion to compel form interrogatoires (“FROG”), set one; special interrogatories (“SPROG”), set one; and request for production of documents (“RPD”), set one. On July 15, 2025, Plaintiffs filed this motion to compel that was accompanied by a proof of service indicating electronic service on July 14, 2025. In total, Plaintiffs seek further responses to 87 discovery requests: FROG no. 2.2, 2.5, 2.6, 2.7, 2.11, 12.1, 12.2, 12.3, 12.6, 15.1, 17.1, 50.1, 50.4, 50.5, and 50.6; SPROG 1-35; and RPD 1-37. Defendant Xiaoli Song opposes the motion and filed opposition papers on May 6, 2026. Plaintiffs filed a reply brief with declaration in support on May 14, 2026. The Court has carefully reviewed the following moving papers: Plaintiffs’ notice of motion to compel FROG, SPROG, and RPD, set one (totaling 3 pages); Plaintiffs’ memorandum of points and authorities (totaling 11 pages); Declaration of Bredon Farrell in support of Plaintiffs’ motion (totaling 125 pages); Declaration of Honglin Chen in support of Plaintiffs’ motion (totaling 96 pages); Declaration of Katherine Chen in support of Plaintiffs’ motion (totaling 120 pages); Plaintiffs’ separate statement (totaling 43 pages); proof of service (totaling 3 pages); Defendant Song opposition papers (totaling 6 pages); Declaration of Steve Leydiker in support of the defendant’s opposition and attached Exhibits 1-2 (totaling 52 pages); Defendant’s separate statements (totaling 5 pages); Plaintiffs’
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LAW AND MOTION TENTATIVE RULINGS

			brief (totaling 7 pages); Declaration of Chen in support of Plaintiffs' brief (totaling 13 pages); proof of service (totaling 1 page); and the pleadings. On August 15, 2025, the clerk's office sent a rejection letter stating that each motion to compel requires a separate reservation. Parties are admonished to comply in future filings. The Court ORDERS the parties to meet-and-confer in good faith either in person, video conference, or by telephone and conduct reasonable and meaningful discussions about the 87 discovery matters and attempt to narrow the many issues in this motion, including any stipulations to the scope of discovery. If any issues remain after this meeting, which may span several sessions, the parties are ORDERED to file a JOINT statement, no later October 9, 2026, which shall identify the remaining items in dispute and the reasons why further responses should or should not be compelled. Failure to comply with this order will result in consideration of sanctions or forfeiture of the motion. The parties to also discuss a discovery referee and provide a JOINT statement on whether parties will finance a court referee to assist in discovery matters at issue or will submit to a court provided discovery referee. Based on the number and complexity of the 87 requests, the Court will discuss having this matter assigned to a discovery referee under Code of Civil Procedure section 639 and 645.1. The motion to compel the 87 FROG, SPROG, and RFD, and motion for sanctions are CONTINUED to October 20, 2026 at 9:00 a.m. in Department 1.
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LAW AND MOTION TENTATIVE RULINGS

LINE 7	25CV457348	Immigrant Rights Defense Council, LLC et al vs Shamsher Brar	Motion to Compel Responses to Form Interrogatories & Sanctions Scroll down to Line 7 for Tentative Ruling.
LINE 8	23CV411676	Brian Claire vs Manuel Groto et al	Motion for Reconsideration This motion is specially set and CONTINUED to June 29, 2026 1:30 p.m. in Dept. 18. Parties need not refile moving papers associated with this motion.
LINE 9	23CV427505	Steve McHarris vs City of Milpitas	Motion to Tax Cost This matter is CONTINUED to September 15, 2026 9:00 a.m. in Dept. 1. This case is pending two separate appeals before the Sixth District Court of Appeal, case numbers H053453 and H053878. Plaintiff filed this motion to tax cost on July 21, 2025, opposition papers were filed by the defendant on May 6, 2026. Plaintiff/moving party filed a reply brief on May 11, 2026 requesting that the court defer ruling until an appellate decision is finalized.

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9:01 A.M.			
LINE 1	24CV428731	Sharad Gupta vs Omar Bernabe et al	Order of Examination Parties to appear.
LINE 2	26CV487717	26CV487717	Order of Examination Parties to appear.
LINE 3	23CV426238	Jaiden Holland vs Jennifer Chapman et al	Minor's Compromise Parties to appear.

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